

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA**

Case No. 0:17-cv-60910-KMM

MARCIA BONAVIA SAMUELS,

Plaintiff,

v.

KILOLO KIJAKAZI,
Acting Commissioner of Social Security,¹

Defendant.

ORDER ON REPORT AND RECOMMENDATION

THIS CAUSE came before the Court upon Plaintiff Marcia Bonavia Samuel's ("Plaintiff") Unopposed Motion for Attorney's Fees Pursuant to the Equal Access to Justice Act ("EAJA"). ("Mot.") (ECF No. 26). The Court referred the matter to the Honorable Lauren F. Louis, United States Magistrate Judge, to issue a report and recommendation. (ECF No. 29). Magistrate Judge Louis issued a Report and Recommendation ("R&R") recommending that Plaintiff's Motion be granted in part. (ECF No. 32). No objections were filed and the time to do so has passed. The matter is now ripe for review.

The Court may accept, reject, or modify, in whole or in part, the findings or recommendations made by the magistrate judge. 28 U.S.C. § 636(b)(1); Fed. R. Civ. P. 72(b)(3).

Pursuant to the EAJA, Plaintiff seeks to recover \$25,735.94 in attorney's fees, \$585.08 in travel expenses, and \$3,763.35 in costs. (ECF No. 26-2) at 5. As set forth in the R&R, Magistrate

¹ Although Nancy A. Berryhill, Acting Commissioner of Social Security, is named as Defendant, Kilolo Kijakazi is now the Acting Commissioner of the Social Security Administration and is automatically substituted as Defendant pursuant to Federal Rule of Civil Procedure 25(d). Fed. R. Civ. P. 25(d).

Judge Louis determined that Plaintiff is entitled to recover reasonable attorney's fees under the EAJA because Plaintiff is the prevailing party, Defendant's position was not substantially justified, and Plaintiff's net worth was less than two million dollars at the time the proceeding was filed. R&R at 2. Magistrate Judge Louis also determined that the attorney's fees requested are reasonable after review of Plaintiff's counsel's itemized time entries for litigation of this case both before this Court and the Eleventh Circuit, Plaintiff's counsel's experience, and Plaintiff's counsel's reputation.² *Id.* at 2–3.

Magistrate Judge Louis also determined that Plaintiff is entitled to \$585.08 in expenses incurred attendant to travel for oral the argument in this case at the Eleventh Circuit because such expenses were reasonable and necessary to the litigation of Plaintiff's case. *Id.* at 3–4. In addition, Magistrate Judge Louis recommends that Plaintiff be awarded costs, but that the amount sought be reduced for costs not explicitly enumerated under § 1920 and for which Plaintiff does not provide justification. *Id.* at 4–6. Accordingly, Magistrate Judge Louis recommends that Plaintiff be awarded \$3,325.14 in costs.³ *Id.* at 7. Finally, Magistrate Judge Louis determined that the attorney's fees, expenses, and costs should be payable to Plaintiff's counsel "once the U.S. Department of the Treasury determines that Plaintiff owes no debt to the United States." *Id.*

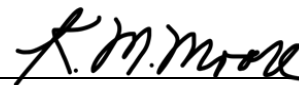
This Court agrees.

² Magistrate Judge Louis declined to determine the propriety of including 13.7 hours of attorney travel time in the requested fee award because the Parties reached an informal agreement to decrease the total amount of requested fees from \$30,881.49 to \$25,735.94. R&R at 3 (citing ECF No. 26-2)).

³ This sum comprises \$905.00 in filing fees and \$2,858.35 in printing costs, reduced by the following nonrecoverable costs: (1) \$204.98 in total FedEx shipment costs, (2) \$80.00 in messenger costs, (3) \$11.23 in postage costs, and (4) \$142.00 in paralegal time where Plaintiff does not argue the paralegal was engaged in non-clerical tasks or work traditionally done by an attorney within the scope of permissible fees. R&R at 6.

Accordingly, UPON CONSIDERATION of the Motion, the R&R, the pertinent portions of the record, and being otherwise fully advised in the premises, it is hereby ORDERED AND ADJUDGED that Magistrate Judge Louis's R&R (ECF No. 32) is ADOPTED. Consistent with Magistrate Judge Louis's R&R, Plaintiff's Unopposed Motion for Attorney's Fees Pursuant to the Equal Access to Justice Act (ECF No. 26) is GRANTED IN PART and DENIED IN PART. Plaintiff is awarded \$25,735.94 in attorney's fees, \$585.08 in expenses, and \$3,325.14 in costs, which should be sent to Plaintiff's counsel after the Government determines whether Plaintiff owes a federal debt.

DONE AND ORDERED in Chambers, at Miami, Florida this 24th day of January, 2022.

A handwritten signature in black ink, appearing to read "K. M. Moore", is written over a horizontal line.

K. MICHAEL MOORE
UNITED STATES DISTRICT JUDGE

c: All counsel of record